ORDINANCE NO.

**AN ORDINANCE
TO AMEND THE *CODE OF ORDINANCES*, ADOPTED JULY 24, 1989,
BY ADDING CERTAIN LANGUAGE
AT CHAPTER 21, TRAFFIC, ARTICLE I. IN GENERAL,
SECTION 21-13 PERMITTING AND REGULATING THE OPERATION OF GOLF CARTS
AND LICENSED LOW SPEED VEHICLES ON
CERTAIN PUBLIC STREETS WITHIN THE CITY OF GULF SHORES
AT SUBSECTION 1 (B) DESIGNATED CART STREETS**

BE IT ORDAINED BY THE MAYOR AND COUNCIL OF THE CITY OF GULF SHORES, ALABAMA, WHILE IN REGULAR SESSION ON APRIL 13, 2026, as follows:

Section 1: That the Code of Ordinances, City of Gulf Shores, Alabama, is hereby amended at Section 21-13 to Chapter 21, Traffic, Subsection 1 (b) Designated Cart Streets by adding certain streets located in the Aventura Subdivision so that the entire Ordinance shall read as follows:

Section 21-13. Operation of Golf Carts On Certain Public Streets Permitted And Regulated.

(a) *Policy Statement.* This Section is enacted pursuant to the authority of the Alabama Constitutional Amendment adopted pursuant to Act No. 2016-271. In enacting this Section, the City Council confirms its view that golf carts are not designed or manufactured to be suitable for use on public streets and roads, and the City of Gulf Shores in no way advocates or endorses the operation of golf carts on public streets. The City understands that residents within golf course residential communities and other communities desire to have the option to operate their golf carts on a limited basis within those communities in order to access the amenities in and immediately adjacent to those communities, and have secured the adoption of Act No. 2016-271 to allow the enactment of ordinances permitting such operation in Baldwin County subject to the terms of the Act and to such other restrictions the City may impose as authorized by the Act. In designating public streets on which golf carts may be legally operated, the Act requires the city to determine that golf carts may safely travel on such designated streets after consideration of factors including, but not limited to, the speed, volume, and character of motor vehicle traffic using the street. The designation in this Section of certain streets as streets on which golf carts may safely travel is not a determination or representation by the City that operation of golf carts on such streets is in fact safe or advisable even if done in accordance with this Ordinance due to the limited drive characteristics and safety features of golf carts. All persons operating golf carts must be observant of, and attentive to the safety of themselves and others, including their passengers, other motorists, bicyclists, and pedestrians. All persons who operate or ride carts on public streets inside the City of Gulf Shores do so at their own risk and peril, and no permit for the operation of a golf cart on the public streets shall be issued except upon execution by the owner of the golf cart of a written undertaking to indemnify and hold the City, its officials, officers, agents, and employees harmless from any and all liability of any kind or character directly or indirectly associated with such operation.

(b) *Definitions*. As used in this Section, the following terms shall have the following meanings:

"Cart" shall mean a golf cart equipped with approved seat belts for each occupant, head lights, brake lights, turn signals, a windshield, a rear view mirror, efficient brakes, reliable steering apparatus, safe tires, red reflectorized warning devices on both the front and rear and an orange warning flag displayed at least six (6) feet above the ground, excepting, however any, State Tagged Cart or Municipal Service Vehicle.

"Designated Cart Street" shall mean the following public streets within the corporate limits of the City of Gulf Shores, Alabama designated under this Section for the use of Carts, to be marked with appropriate signage advising that the street may be utilized by Carts:

*THE FOLLOWING CERTAIN STREETS IN THE **BRIGADOON TRAIL & VICINITY***:

BRIGADOON TRAIL
MIDDLE BRIGADOON TRAIL
EDWARD DRIVE
PATRICIA DRIVE
LEMAR DRIVE
LAGOON WINDS DRIVE

*THE FOLLOWING CERTAIN STREETS IN THE **RETREAT AT BON SECOUR***:

BIENVILLE AVENUE
ARCADIA STREET
CERIGNY STREET
CHASTAIN STREET
ORLEANS STREET

*THE FOLLOWING CERTAIN STREETS IN **GULF WOOD HIGHLANDS** SUBDIVISION:*

HILLTOP DRIVE
14TH AVENUE
YUPON DRIVE
OAK RIDGE DRIVE
13TH AVENUE
SUNSET DRIVE
MAGNOLIA DRIVE
12TH AVENUE
W 2ND STREET
WEST 1ST STREET

*THE FOLLOWING CERTAIN STREETS IN **CYPRESS PARK SUBDIVISION** AND SURROUNDING AREA:*

WEST 19th AVENUE - stops @ West 1st Street
WEST 22nd AVENUE - stops @ West 1st Street
WEST 23rd AVENUE
EAST 24th AVENUE
WEST 1st STREET
WEST 2nd STREET
WEST 3rd STREET
WEST 4th STREET
WEST CANAL DRIVE
CLUBHOUSE DRIVE - stops @ West 1st Street
PROFESSIONAL LANE
OFFICE PARK DRIVE
LAKEWOOD COURT
HOGAN DRIVE
WEDGEWOOD DRIVE
WEST FAIRWAY DRIVE
EAST FAIRWAY DRIVE
BEAR CREEK DRIVE
BEAR CREEK COVE
BEAR CREEK COURT
MOSSY OAK DRIVE
HERON COVE LANE
LOPEZ COURT
TREVINO DRIVE
REGENCY ROAD
HERITAGE DRIVE
TWISTED OAK CIRCLE
CAMELIA CIRCLE
ROYAL OAK CIRCLE
PINERIDGE DRIVE
FORESTWOOD DRIVE
HOLLY LANE

*THE FOLLOWING CERTAIN STREETS IN **CRAFT FARMS:***

ALTON ST
AUGUSTA DR
BIRKDALE ST
BLUE HERON DR
COTTON CREEK BLVD

COTTON CREEK CIR
CRAFT FARMS BLVD
CRAIGEND LOOP
CYPRESS BEND DR
CYPRESS CIR
CYPRESS LAKE DR
CYPRESS POINT DR
DARLEY CIR
DORR AV
ESTATES DR
GLEN EAGLES AV
GREENAN WAY
GROVE ST
GYAWS AV
INVERNESS CIR
LADYBANK ST
MUIRFIELD CT
OLDE PARK CT
OLDE PARK LN
OLDE PARK RD
PINEHURST CIR
PINEHURST DR
PINEHURST PT
PINEVIEW PL
PORTLAND CIR
PRESTWICK AV
PRESTWICK CIR
ROYAL DR
ROYAL GLEN BLVD
ROYAL TROON CIR
ROYAL TROON DR
SAINT ANDREWS DR
SAINT ANDREWS DR E
TURNBERRY DR
VILLAGE DR
VILLAGE LN
WILLOW POINT CT

*THE FOLLOWING CERTAIN STREETS IN **MARTYN WOODS AT BON SECOUR**:*
LYMAN BOULEVARD
MILLHOUSE ROAD
TREASURE OAKS ROAD
TREASURE OAKS COURT
BEATRICE ROAD
MILLWOOD DRIVE

*THE FOLLOWING CERTAIN STREETS IN **AVENTURA**:*
STAFFORD BOULEVARD
ALDRIN AVENUE
CONRAD COURT
BORMAN COURT
BORMAN LOOP
ROOSA AVENUE
SHEPARD STREET
APOLLO AVENUE
POGUE STREET
WORDEN STREET
LANDWARD DR S. – PORTION
LANDWARD DR N.
HAISE LANE
GEMINI STREET
MERCURY CIRCLE
MATTINGLY LANE
KERWIN CT

*THE FOLLOWING CERTAIN STREETS IN THE **GULF PINES NEIGHBORHOOD AND SURROUNDING STREETS:***
E CANAL DR (FROM E 3RD ST TO THE PEDESTRIAN BRIDGE PLAZA)
E 24TH AVE
E 23RD AVE (FROM EAST GULF AVE TO E 2ND ST AND FROM E 2ND ST TO E 10TH ST)
W 22ND AVE AND E 22ND AVE (FROM W 1ST ST TO E 10 ST)
E 21ST AVE (FROM E 2ND ST TO THE CUL-DE-SAC IN THE E 500 BLOCK)
DOLPHIN AVE (FROM 400 DOLPHIN AVE TO E 15TH AVE)
E 15TH AVE (FROM E 3RD ST TO THE TERMINUS AT THE ECOTOURISM CENTER)
E GULF AVE
E 3RD ST (
E 4TH ST (FROM E 22ND AVE TO E 24TH AVE)
E 5TH ST (FROM DOLPHIN AVE TO E 24TH AVE, INCLUDING GOLF CART/BIKE/PED ACCESS ONLY FROM DOLPHIN AVE TO E 21ST AVE)
E 6TH ST (FROM E 22ND AVE TO E 24TH AVE)
E 8TH ST
E 9TH ST (FROM E 22ND AVE TO E 24TH AVE)
E 10TH ST (FROM E 22ND AVE TO E 24TH AVE)

THE FOLLOWING CERTAIN STREETS IN THE ***COTTON BAY SUBDIVISION:***

COTTON BAY BLVD
SAVANNAH LANE
PLANTATION LANE
COTTON BAY LANE
COTTON BAY DR WEST
COTTON BAY DR EAST
COTTON BAY COURT

By Resolution of the Council adopted from time to time subsequent to the enactment of this Section, the list of Designated Cart Streets may be amended by the addition of other streets or the deletion of streets previously listed, provided, however, no street on which the speed limit is greater than 25 miles per hour shall be designated as a Designated Cart Street.

"State Tagged Cart" shall mean a golf cart, low speed vehicle, or neighborhood electric vehicle that is registered with and licensed by the State of Alabama under Title 32 of the Code of Alabama.

"Municipal Service Vehicle" shall mean a City operated State Tagged Cart or other City operated motorized equipment or vehicle when in service for the provision of public safety or public maintenance services.

(c) Rules *and Regulations*
Carts may not be operated on any public street, road, or highway within the corporate limits of the City of Gulf Shores that is not a Designated Cart Street and may be operated only on Designated Cart Streets in accordance with the following rules and regulations. A State Tagged Cart that is not a Municipal Service Vehicle may not be operated on any public street, road, or highway within the corporate limits of the City of Gulf Shores on which the posted legal speed limit is greater than 25 miles per hour.

(1) No person who is not a driver licensed by the State of Alabama or, in the case of a non-resident, by his or her home state or country or who is less than eighteen (18) years of age may operate a Cart on a designated Cart Street.

(2) Carts may be operated on Designated Cart Streets only between the hours between sunrise and no later than 10:00 p.m. The headlights on the Cart shall be illuminated at all times when it is in operation on Designated Cart Streets regardless of the time of operation.

(3) Any person who operates a Cart on the Designated Cart Streets must adhere to all State and municipal laws applicable to the operation of motor vehicles, including, without limitation, all laws concerning the operation of a vehicle under the influence of alcohol or drugs. The operator of a Cart

may not overtake and pass in the same lane occupied by the vehicle being overtaken. A Cart may not be operated between lanes of traffic or between adjacent lines or rows of vehicles, and Carts may not be operated two or more abreast in a single lane.

(4) Cart drivers must yield the right-of-way to overtaking vehicles at all times.

(5) The maximum occupancy of a Cart shall be the number of occupants for which the Cart has approved seat belts. No Cart shall be operated on any public street unless all occupants are seated with their seat belts fastened. No child under the age of five (5) shall be transported in a Cart on any public street.

(6) No Cart shall be operated on any public sidewalk or bike path.

(7) No Cart shall be parked in a designated handicapped parking space unless the driver or at least one passenger has a valid handicapped parking permit that is displayed on the Cart.

(8) No Cart may be operated on a Designated Cart Street without a valid permit sticker issued by the Gulf Shores Police Department to the owner of the Cart attached. A yearly fee of twenty dollars ($25.00) per Cart will be charged by for this permit sticker on the basis of each calendar year or portion thereof. Each Cart must be inspected annually before a permit is issued and no permit shall be issued for any Cart that does not meet the equipment and condition requirements of this Ordinance. No permit shall be issued for any Cart without proof that any person who may operate the Cart on a public street is covered by a policy of liability insurance held by the owner of the Cart. The required minimum liability limits for the operation of the Cart shall be the same as required by the State of Alabama for operation of a motor vehicle.

(d) *Violations.* The following shall constitute violations of this Section:

(1) The operation of a Cart on any public street, road, or highway within the corporate limits or police jurisdiction of the City of Gulf Shores that is not a Designated Cart Street.

(2) The operation of a Cart on a Designated Cart Street in violation of any of the rules or regulations set out in subsection (c) above.

(3) The operation of a golf cart that is not a Cart with a valid permit sticker on any public street, road, or highway within the corporate limits or police jurisdiction of the City of Gulf Shores.

(4) The operation of a State Tagged Cart that is not a Municipal Service Vehicle on any public street, road, or highway within the corporate limits of the City of Gulf Shores on which the posted legal speed limit is greater than 25 miles per hour. The unauthorized operation of a golf cart, Cart, or State Tagged Cart on any public street, road, or highway in violation of this Section shall be a violation for which the City may assess and collect a

civil penalty from the owner in the amount of fifty dollars ($50.00). In addition, any person committing a violation of this Section shall, upon conviction, be punished by a fine of not less than one-dollar ($1.00) nor more than two hundred dollars ($200.00) and/or may be imprisoned for a period not exceeding thirty (30) days, at the discretion of the court trying the case. In the event of the assessment of a civil penalty against the owner, of a conviction of the owner or operator of a violation, or both, and at the discretion of the Chief of Police reviewable by appeal to the City Council, the Cart permit sticker issued to a Cart operated in violation of this Ordinance may be revoked by the Chief of Police.

(e) S*ection Supplementary to Federal and State Regulation.*
The provisions of this Section shall be interpreted as supplementary to all other municipal, state and federal laws and regulations now or hereafter in force, and compliance with this Section does not relieve an individual from the requirement of compliance with all other applicable municipal, state and federal laws and regulations, if any.

Section 2. The provisions of this Ordinance are severable. If any part of this Ordinance is declared invalid or unconstitutional by a court of competent jurisdiction, such declaration shall not affect the validity and enforceability of the remaining provisions of the Ordinance.

Section 3. This Ordinance shall become effective upon its adoption and publication as required by law.

Adopted this 13th day of April 2026.

_____
Robert Craft, Mayor

Attest:

_____
Tobi Waters, MMC
City Clerk

C E R T I F I C A T E

I, Tobi Waters, MMC, City Clerk of the City of Gulf Shores, Alabama, do hereby certify that the foregoing is a true and correct copy of Ordinance No. (prepared by City Clerk), which Ordinance was duly and legally adopted at a regular meeting of the City Council on April 13, 2026, and published as required by law.

_____
City Clerk